

1 ENGROSSED HOUSE
2 BILL NO. 4237

By: Kannady of the House

3 and

4 Gollihare of the Senate

5
6 [criminal procedure - court costs and fees -
7 guidelines and procedures for cost arrest warrants
8 - collection of court financial obligations -
9 ability-to-pay hearings - financial obligations -
10 exceptions - waiver of financial obligations - make
11 written findings - Administrative Office of the
12 Courts - effective date]
13
14

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 22 O.S. 2021, Section 983, as last
17 amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025,
18 Section 983), is amended to read as follows:

19 Section 983. A. As used in this section, unless the context
20 otherwise requires:

21 1. "Cost arrest warrant" means a warrant authorizing arrest
22 that is issued by a court under the following circumstances:

23 a. failure to comply with the terms of a court financial
24 obligations payment plan,

1 b. failure to appear at a cost hearing or willfulness
2 hearing, or

3 c. failure to appear at the office of the court clerk of
4 the county in which the court financial obligation is
5 owed within ~~ten (10)~~ thirty (30) days of being cited
6 by a law enforcement officer to appear;

7 2. "Cost cite and release warrant" means a warrant issued by a
8 court authorizing citation and release under the following
9 circumstances:

10 a. failure to comply with terms of a court financial
11 obligations payment plan, or

12 b. failure to appear at a cost hearing or willfulness
13 hearing;

14 3. "Cost hearing" means a hearing in which the court determines
15 the ability of a defendant to pay court financial obligations. Once
16 a cost hearing date has been set, all court financial obligations
17 shall be suspended until the cost hearing has been held;

18 4. "Court financial obligation" means all financial obligations
19 including fines, costs, fees, and assessments, imposed by the court
20 or required by law to be paid, excluding restitution or payments to
21 be made other than to the court clerk;

22 5. "Payment-in-full" means a court financial payment term that
23 requires the defendant to pay the full amount of court financial
24 obligations owed within ninety (90) days of a plea or sentence in

1 the district court or within thirty (30) days of a plea or sentence
2 in the municipal court;

3 6. "Payment-in-installments" means payment terms for court
4 financial obligations that require the defendant to make monthly
5 payments in any amount until the amount owed is fully paid; and

6 7. "Willfulness hearing" means a hearing in which the court
7 determines whether a defendant who has previously been found to have
8 the ability to pay court financial obligations has willfully failed
9 to pay the debt.

10 B. 1. ~~Except in cases provided for in Section 983b of this~~
11 ~~title, when the judgment and sentence of a court, either in whole or~~
12 ~~in part, imposes court financial obligations upon a defendant, the~~
13 ~~court at the time of At sentencing may immediately, or at any point~~
14 ~~thereafter until the debt is either paid or waived, determine the~~
15 ~~ability of a defendant to pay the court financial obligations. The~~
16 ~~for any criminal offense, the court may make such determinations at~~
17 ~~a cost hearing or upon written motion or affidavit by the defendant.~~
18 ~~The ability of a defendant to pay court financial obligations may~~
19 ~~not impact the sentence imposed.~~

20 2. ~~Defendants with court financial obligations who are found by~~
21 shall impose any fines, court costs, fees, and assessments
22 authorized by law, subject to the provisions of paragraphs 3 and 4
23 of this subsection and subsection C of this section.
24

1 2. At the time of sentencing, the court to be unable to pay, in
2 ~~whole or in part,~~ shall be relieved of the debt by offer to conduct,
3 contemporaneously with sentencing, an ability-to-pay hearing to
4 determine the ability of the defendant to satisfy such financial
5 obligations.

6 3. The defendant shall be ordered to pay the imposed fines,
7 court costs, fees, and assessments unless the court ~~through a~~
8 ~~hardship waiver of the court financial obligations, either in whole~~
9 ~~or in part.~~

10 ~~3. In determining the ability of a defendant to pay, the court~~
11 ~~shall consider~~ makes written findings that one or more of the
12 following factors conditions is met:

- 13 a. ~~individual and~~ the household income of the defendant
14 is less than one hundred fifty percent (150%) of the
15 federal poverty level,
- 16 b. ~~household living expenses,~~
- 17 c. ~~number of dependents,~~
- 18 d. ~~assets,~~
- 19 e. ~~child support obligations,~~
- 20 f. ~~physical or mental health conditions that diminish the~~
21 ~~ability to generate income or manage resources,~~
- 22 g. ~~additional case-related expenses to be paid by the~~
23 ~~defendant, and~~

1 h. ~~any other factors relevant to the ability of the~~
2 ~~defendant to pay.~~

3 4. ~~In determining the ability of a defendant to pay, the~~
4 ~~following shall not be considered as income or assets:~~

5 a. ~~child support income,~~

6 b. ~~any monies received from a federal, state, or tribal~~
7 ~~government need-based or disability assistance~~
8 ~~program, or~~

9 c. ~~assets exempt from bankruptcy.~~

10 5. ~~Defendants in the following circumstances are presumed~~
11 ~~unable to pay and eligible for relief under paragraph 2 of this~~
12 ~~subsection:~~

13 a. ~~designated as totally disabled by any federal, state,~~
14 ~~or tribal disability services program including but~~
15 ~~not limited to military disability, Social Security~~
16 ~~Disability Insurance, Supplemental Security Income, or~~
17 ~~tribal disability benefits,~~

18 b. ~~receives support from the~~ defendant is receiving
19 state, local, or federal benefits based on indigency
20 or receiving need-based public assistance such as
21 Temporary Assistance for Needy Families (TANF)
22 program, Supplemental Nutrition Assistance Program
23 (SNAP), the Special Supplemental Nutrition Program for
24 Women, Infants, and Children nutrition education and

1 supplemental food program, or any other federal need-
2 based financial support,

3 c. ~~receives~~ subsidized housing ~~support through~~ programs
4 such as the Housing Choice Voucher program, the United
5 States Department of Housing and Urban Development, or
6 other state, local, or federal government housing
7 subsidy program, or

8 d. ~~total income is below one hundred fifty percent (150%)~~
9 ~~of the federal poverty level~~ the defendant is
10 designated as totally disabled by a federal, state, or
11 tribal disability services program including, but not
12 limited to, military disability benefits, Social
13 Security Disability Insurance (SSDI), Supplemental
14 Security Income (SSI), or tribal disability benefits.

15 C. 1. ~~At the time of a plea or sentencing, the court shall~~
16 ~~inform the defendant of the total court financial obligations owed,~~
17 ~~the consequences of failing to pay~~

18 4. If the court financial obligations, and that finds that any
19 of the foregoing conditions are satisfied, the defendant may request
20 a cost hearing if at any time he or she is shall be presumed unable
21 to pay the court financial obligations, at which point, and the
22 finest, court costs, fees, and assessments shall be waived in whole.
23 The court may waive all or part of the debt owed. If the total
24 amount of court financial obligations owed is not available at the

1 ~~time of the plea or sentencing, the court shall inform the defendant~~
2 ~~that court financial obligations have been incurred and the time and~~
3 ~~location where the defendant may learn of the total amount owed~~ make
4 written findings to support such waiver.

5 ~~2. The court shall order the defendant to appear immediately~~
6 ~~after sentencing at the office of the court clerk to provide current~~
7 ~~contact information and to either select payment terms or request a~~
8 ~~cost hearing. Failure to immediately report to the court clerk~~
9 ~~shall result in the full amount of court financial obligations to be~~
10 ~~due thirty (30) days from the date of the plea or sentencing in~~
11 ~~district courts or thirty (30) days from the date of the plea or~~
12 ~~sentencing in municipal courts.~~

13 ~~3. Payment of court financial obligations may be made under the~~
14 ~~following terms:~~

- 15 ~~a. payment in full, or~~
16 ~~b. payment in installments.~~

17 ~~Upon any change in circumstances affecting the ability of a~~
18 ~~defendant to pay, a defendant may request a cost hearing before the~~
19 ~~court by contacting the court clerk.~~

20 ~~4. The district court for each county and all municipal courts~~
21 ~~shall provide a cost hearing for any defendant upon request, either~~
22 ~~by establishing a dedicated docket or on an as-requested basis. A~~
23 ~~defendant who requests a cost hearing will receive a summons by~~
24 ~~personal service or by United States mail to appear in court as~~

1 ~~required by subsection C of this section. If a defendant fails to~~
2 ~~appear for a requested cost hearing, the court may issue either a~~
3 ~~cost cite and release warrant or a cost arrest warrant. No fees~~
4 ~~shall be assessed or collected from the defendant as a consequence~~
5 ~~of either requesting a cost hearing or the issuing of a cost cite~~
6 ~~and release warrant.~~

7 ~~D. In determining the ability of the defendant to pay court~~
8 ~~financial obligations, the court may rely on testimony, relevant~~
9 ~~documents, and any information provided by the defendant using a~~
10 ~~cost hearing affidavit promulgated by the Court of Criminal Appeals.~~
11 ~~In addition, the court may make inquiry of the defendant and~~
12 ~~consider any other evidence or testimony concerning the ability of~~
13 ~~the defendant to pay.~~

14 ~~E. 1. If at the initial cost hearing or any subsequent cost~~
15 ~~hearing,~~

16 C. If neither paragraph 3 or 4 of subsection B of this section
17 is satisfied and the court determines that the defendant is able has
18 some ability to pay some or all of but not the ability to pay the
19 full amount, the court ~~financial obligations, the court may order~~
20 ~~any of the following conditions for payment:~~

- 21 a. ~~payment in full,~~
- 22 b. ~~payment in installments,~~
- 23 c. ~~financial incentive under a set of conditions~~
24 ~~determined by the court, or~~

1 d. ~~community service in lieu of payment; provided, the~~
2 ~~defendant shall receive credit for no less than two~~
3 ~~times the amount of the minimum wage specified~~
4 ~~pursuant to state law for each hour of community~~
5 ~~service.~~

6 2. ~~Any~~ shall reduce the amount owed or impose payment in part,
7 and may order community service in lieu of payment, establish an
8 installment plan consistent with the financial capacity of the
9 ~~defendant who fails to comply with the terms of the payment plan~~
10 ~~ordered by the court shall be considered delinquent and the court~~
11 ~~may issue either a cost cite and release warrant or a cost arrest~~
12 ~~warrant,~~ or order the defendant to participate in another
13 alternative program.

14 F. D. If at any later time, the court ~~determines that a waiver~~
15 ~~of any of the court~~ receives credible evidence that the financial
16 ~~obligations is warranted~~ circumstances of the defendant satisfy one
17 or more of the criteria in paragraph 3 of subsection B of this
18 section, or that the circumstances described in subsection C of this
19 section apply, or otherwise demonstrate inability to pay the full
20 remaining balance, the court shall ~~apply the same percentage~~
21 ~~reduction equally to all~~ reopen the determination and may reduce or
22 waive the remaining fines, court costs, fees, and assessments,
23 ~~excluding restitution~~ accordingly.

1 ~~G.~~ E. 1. A defendant is considered delinquent in the payment
2 of court financial obligations under the following circumstances:

3 a. when the total amount due has not been paid by the due
4 date, or

5 b. when no installment payments have been received in the
6 most recent ninety-day period.

7 2. The court clerk shall periodically review cases for
8 delinquency at least once every six (6) months and, upon identifying
9 a delinquent defendant, notify the court which shall, within ten
10 (10) days thereafter, set a cost hearing for the court to determine
11 if the defendant is able to pay pursuant to the criteria set forth
12 in this section. The cost hearing shall be set within forty-five
13 (45) days of the issuance of the summons. The hearing shall be set
14 on a date that shall allow the court clerk to issue a summons
15 fourteen (14) days prior to the cost hearing. Defendants shall
16 incur no additional fees associated with the issuance of the
17 summons.

18 3. At least fourteen (14) days prior to the cost hearing, the
19 court clerk shall issue one summons to the defendant to be served by
20 United States mail to the mailing address of the defendant on file
21 in the case, substantially as follows:

22 SUMMONS

23 You are ORDERED to appear for a COST HEARING at a specified
24 time, place, and date to determine if you are financially able to

1 pay the fines, costs, fees, or assessments or an installment due in
2 Case No._____.

3 YOU MUST BE PRESENT AT THE HEARING.

4 At any time before the date of the cost hearing, you may contact
5 the court clerk and pay the amount due or request in writing or in
6 person prior to the court date, that the hearing be rescheduled for
7 no later than thirty (30) days after the scheduled time.

8 THIS IS NOT AN ARREST WARRANT. However, if you fail to appear
9 for the cost hearing or pay the amount due, the court may issue a
10 WARRANT and may refer the case to a court cost compliance liaison
11 which will cause an additional administrative fee of up to thirty-
12 five percent (35%) to be added to the amount owed and may include
13 additional costs imposed by the court.

14 4. Referrals to the court cost compliance program as provided
15 in subsection ~~I~~ J of this section shall be made as follows:

- 16 a. courts shall refer a case to the court cost compliance
17 program upon the issuance of a cost arrest warrant,
18 b. courts may refer a case to the court cost compliance
19 program upon the issuance of a cost cite and release
20 warrant, or
21 c. courts may refer a case to the court cost compliance
22 program without the issuance of a warrant; provided,
23 the defendant is delinquent and has had sufficient
24 notice and opportunity to have a cost hearing.

1 5. A municipal court, in lieu of mailing the summons provided
2 for in this subsection, may give the summons to the defendant in
3 person at the time of sentencing or subsequent appearance of a
4 specific date, time, and place, not fewer than thirty (30) days nor
5 more than one hundred twenty (120) days from the date of sentencing
6 to appear for a cost hearing if the court financial obligations
7 remain unpaid.

8 ~~H.~~ F. 1. If a defendant is found by a law enforcement officer
9 to have an outstanding cost cite and release warrant, the law
10 enforcement officer shall issue a Warning/Notice to appear within
11 ~~ten (10)~~ thirty (30) days of release from detention on the warrant
12 to the court clerk of the court in which the court financial
13 obligations are owed. If the officer has the necessary equipment,
14 the officer shall immediately transmit the Warning/Notice
15 electronically to the court clerk of the court in which the court
16 financial obligations are owed. The law enforcement officer shall
17 not take the defendant into custody on the cite and release warrant.
18 If the law enforcement officer is unable to transmit the
19 Warning/Notice electronically to the court clerk, the officer shall
20 inform the appropriate department staff member within the agency of
21 the law enforcement officer of the Warning/Notice within five (5)
22 days. The department staff member shall then promptly notify the
23 law enforcement agency in the jurisdiction that issued the warrant
24 electronically who shall promptly notify the court clerk. The

1 electronic communication shall be treated as a duplicate original
2 for all purposes in any subsequent hearings before the appropriate
3 court.

4 2. If the defendant reports to the office of the court clerk
5 within the ~~ten (10)~~ thirty (30) days, the court clerk shall:

- 6 a. inform the court of the Warning/Notice to the
7 defendant and contact,
- 8 b. schedule a cost hearing pursuant to applicable local
9 court rule, and
- 10 c. submit the warrant to the court for recall pending the
11 cost hearing.

12 3. If the defendant fails to report to the office of the court
13 clerk within the ~~ten (10)~~ thirty (30) days, the court may issue a
14 cost arrest warrant for the arrest of the defendant.

15 4. Following an arrest on a cost arrest warrant, the defendant
16 must be released after ~~seventy-two (72)~~ twenty-four (24) hours in
17 custody, not including weekends. The defendant may be released
18 prior to ~~seventy-two (72)~~ twenty-four (24) hours if:

- 19 a. the custodian is presented with proof of payment in
20 the amount of One Hundred Dollars (\$100.00) to each
21 jurisdiction where the court financial obligations are
22 owed and the new cost hearing date is provided,

1 b. the court releases the defendant on the defendant's
2 own recognizance and a new cost hearing date is
3 provided, or

4 c. the court conducts a cost or willfulness hearing, as
5 appropriate, pursuant to the provisions of this
6 section and determines the defendant should be
7 released.

8 5. The provisions for issuing a separate summons described in
9 subsection ~~G~~ E of this section shall not apply to a municipal court
10 if the municipal court has previously provided actual personal
11 notice to the defendant of an opportunity for a cost hearing. If
12 such notice was given and the defendant fails to appear, the
13 municipal court may issue either a cost cite and release warrant or
14 a cost arrest warrant.

15 6. All warrants for failure to appear at a cost hearing or for
16 failure to pay court financial obligations which have been issued
17 prior to the effective date of this act and which remain unserved,
18 shall be treated as cost cite and release warrants. All warrant
19 fees assessed for warrants for failure to appear at a cost hearing
20 or for failure to pay court financial obligations issued prior to
21 the effective date of this act shall remain in effect unless waived
22 by the court.

23 ~~F~~ G. Supporting documents in a motion or affidavit for relief
24 from court financial obligation debt or any documents taken into

1 evidence during a cost hearing or willfulness hearing shall not be
2 viewable by the public on a court-controlled website.

3 ~~J.~~ H. 1. After a cost hearing where a defendant is found able
4 to pay a court financial obligation, either in whole or in part, and
5 then becomes delinquent in that payment, a court may conduct a
6 willfulness hearing at any time beginning immediately after a cost
7 hearing has been held and a decision rendered on the court financial
8 obligations. Findings of a defendant's prior ability to pay may be
9 considered as evidence of ability to pay or willfulness at the
10 hearing. The requirements of this paragraph shall not be construed
11 to prohibit the court from holding subsequent cost hearings on the
12 same court financial obligations.

13 2. At a willfulness hearing, the court shall evaluate the
14 following:

- 15 a. whether a cost hearing has been held previously where
16 evidence relating to ability to pay was presented and
17 the court found the defendant was able to pay the
18 court financial obligations, either in whole or in
19 part,
- 20 b. whether there is any new evidence of ability to pay
21 not previously considered or a change in circumstances
22 since the cost hearing,

- c. whether the defendant was afforded sufficient time and opportunity to fulfill the obligation to pay the court financial obligations,
- d. whether the defendant made any efforts to satisfy the court financial obligations, and
- e. whether there are any other relevant facts or circumstances.

3. After a finding of willful failure to pay court financial obligations, the court may impose a jail sentence pursuant to Section 101 of Title 28 of the Oklahoma Statutes. A jail sentence may be imposed only under the following circumstances:

- a. the hearing is conducted on the record pursuant to the rules promulgated by the Court of Criminal Appeals, and
- b. the defendant is represented by counsel or expressly waives his or her right to counsel.

4. If a jail sentence is imposed, the court may grant credit for any time already served. At any time after incarceration, the jail sentence may be satisfied upon payment in full of the outstanding balance with credit for any time already served.

~~K. The district court or municipal court, within one hundred twenty (120) days from the date upon which the person fails to comply with the financial obligation as ordered by the court or fails to appear for the offered cost or willfulness hearing, may, if~~

~~the defendant has previously been notified of the possibility of a suspension, send notice of nonpayment of any court ordered financial obligation for a moving traffic violation to Service Oklahoma with a recommendation of suspension of~~

I. No person shall have driving privileges of the defendant
~~until the total amount of any court financial obligation has been paid or waived by the court. Upon receipt of payment of the total amount of the court financial obligations for the moving traffic violation, the court shall send notice thereof to Service Oklahoma, if a nonpayment notice was sent as provided for in this subsection. Notices sent to Service Oklahoma shall be on forms or by a method approved by Service Oklahoma~~ suspended for failure to pay fines, court costs, fees, or assessments.

~~L. J.~~ J. Every county and district court of this state shall fully utilize and participate in the court cost compliance program. ~~Cases shall be referred to the court cost compliance program no more than sixty (60) days after the court has ordered the referral pursuant to paragraph 4 of subsection G of this section, unless the defendant pays the amount owed on the court financial obligation or an installment due.~~ When the court refers a case, the updated contact information on file shall be forwarded to a court cost compliance liaison for collection purposes.

~~M. K.~~ K. The ~~Court of Criminal Appeals~~ Administrative Office of the Courts shall ~~implement procedures and~~ develop standardized

1 ~~forms, procedural rules for implementation of the requirements of~~
2 ~~this section. Such procedures, rules, and any supplemental forms~~
3 ~~may be made available by the Administrative Office of the Courts,~~
4 ~~and guidelines to aid courts in conducting ability-to-pay hearings,~~
5 ~~documenting findings, implementing reductions or waivers, and~~
6 ~~tracking compliance.~~

7 L. The provisions of this section shall apply to all sentences
8 imposed on or after November 1, 2026.

9 SECTION 2. This act shall become effective November 1, 2026.

10 Passed the House of Representatives the 26th day of March, 2026.

11
12 _____
13 Presiding Officer of the House
14 of Representatives

15 Passed the Senate the ____ day of _____, 2026.

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17 _____
18 Presiding Officer of the Senate
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